

StayOS

Legal, Accounting & Regulatory Readiness - Egypt

Engineering review pack v2 - 2026-09-20 - branch product-completion-review @ 2f602b0

Scope: classification of open items only. Every classification is one of:

CONFIRMED FROM OFFICIAL SOURCE - LEGAL COUNSEL TO CONFIRM - ACCOUNTANT TO CONFIRM - FOUNDER DECISION - TECHNICAL IMPLEMENTATION ITEM.

This document does not interpret law and does not state that any license or obligation definitely applies unless evidence supports it. Companion: the founder's bilingual dossier (StayOS_Legal_Accounting_Regulatory_Readiness_Egypt_2026-09-20.pdf) remains provenance.

1. Confirmed from official sources (verified 2026-09-20)

CONFIRMED FROM OFFICIAL SOURCE

CBE issued PSO/PSP Licensing & Registration Rules (June 2025) under Banking Law No. 194 of 2020. PSP Category A (>EGP 750M monthly txn value) and Category B (<=EGP 750M); entities providing payment services must be licensed; ~12-month transition ending approx. June 2026.

Source: cbe.org.eg

CONFIRMED FROM OFFICIAL SOURCE

PDPL Law No. 151 of 2020 Executive Regulations issued by MCIT Decree No. 816 of 2025; in force Nov 2025. Grace period ends 1 November 2026. Personal Data Protection Center (PDPC) is the supervisory authority. Regs cover controller/processor licensing, cross-border transfer approval, DPO appointment, Egypt-based representative for foreign entities, breach notification.

Source: mcit.gov.eg / official gazette reporting

CONFIRMED FROM OFFICIAL SOURCE

ETA e-invoice system mandatory per Ministerial Decision 188/2020 (B2B); eReceipt system covers B2C receipts. Integration SDK: sdk.invoicing.eta.gov.eg. Source: eta.gov.eg

CONFIRMED FROM OFFICIAL SOURCE

Hotel & Tourist Establishments Law No. 8 of 2022 (mota.gov.eg) defines hotel establishments including 'hotel apartments' and 'accommodation units' licensed by the Ministry of Tourism. Whether a marketplace platform and/or individual hosts fall inside its scope is a counsel question.

2. Entity & registration

FOUNDER DECISION

Legal form, legal name, incorporation date, commercial registry, tax card, activity, HQ, capital/ownership, bank accounts, authorized signatories. Required before counsel can opine on anything below.

LEGAL COUNSEL TO CONFIRM

GAFI incorporation route + commercial registration requirements (gafi.gov.eg); whether ITIDA registration is beneficial/needed (itida.gov.eg).

ACCOUNTANT TO CONFIRM

Tax registration, VAT registration/applicability to platform commission and guest service fee; corporate tax treatment of the 10% host commission / 4% guest fee / 2% take-rate.

3. Marketplace & money flow

LEGAL COUNSEL TO CONFIRM

Marketplace characterization: booking agent vs merchant of record; who issues the invoice/receipt to the guest; who

bears refund risk. Current product: guest pays a StayOS-controlled account, StayOS deducts commission, forwards host net (founder-decided product rule - legal characterization open).

LEGAL COUNSEL TO CONFIRM

Whether holding guest funds in a StayOS-controlled account, even briefly, triggers CBE PSP licensing or must be structured via a licensed PSP. Do not self-interpret.

FOUNDER DECISION

Payment processor (Paymob domestic vs Stripe - documented unresolved conflict) and real collection account details (currently placeholders).

4. Data protection & KYC

LEGAL COUNSEL TO CONFIRM

PDPL gap assessment: controller/processor licensing or permit, consent language, retention, PDPC approvals for collection mechanisms, cross-border transfer approvals (AWS region + any non-Egypt processing), DPO appointment, breach process - all before 2026-11-01 deadline.

LEGAL COUNSEL TO CONFIRM

KYC handling: national-ID images + selfie are sensitive-category-adjacent; lawful basis, retention, access controls, and whether automated providers may process outside Egypt (FD-02 interacts).

TECHNICAL IMPLEMENTATION ITEM

Hosting/region choices (Railway sfo, AWS region) intersect PDPL transfer rules - flag for counsel before finalizing infrastructure.

5. Sector licensing & consumer rules

LEGAL COUNSEL TO CONFIRM

Tourism licensing: whether Law 8/2022 applies to the platform, to hosts, or to both; any listing-level obligations to surface to hosts.

LEGAL COUNSEL TO CONFIRM

Consumer Protection Law 181/2018: advertising, pricing display, refund timing disclosures vs the approved 5-business-day refund rule and cancellation tiers.

ACCOUNTANT TO CONFIRM

e-invoice/e-receipt scope: whether StayOS must issue e-receipts for its service fee/commission and integrate with ETA systems.

6. Contracts, IP, people

LEGAL COUNSEL TO CONFIRM

Guest ToS, host terms, privacy policy, cancellation/refund policy text - none drafted in repo yet.

LEGAL COUNSEL TO CONFIRM

Trademark 'StayOS'; confirm no Airbnb proprietary assets copied (engineering confirms none used).

LEGAL COUNSEL TO CONFIRM

Staff/co-host contractual characterization (employment vs contractor).

7. What engineering changed that matters legally

Review search and the listing availability calendar (this pass) introduce no new regulated-data handling. The earlier presigned-upload hardening (3129415) means payment proofs require a dedicated private bucket - the S3_PAYMENT_PROOF_BUCKET variable is still undefined on Railway and must be created with the founder's AWS session. No other technical change since the dossier alters payment flow, custody, KYC processing, personal data, hosting/transfer, marketplace role, or invoicing.

8. Open items for counsel/accountant - checklist

- ☐ Entity inputs (section 2) ☐ CBE PSP applicability opinion ☐ PDPL gap assessment + deadline plan
- ☐ Tourism law applicability (platform vs hosts) ☐ Consumer-protection alignment of refund/cancellation rules
- ☐ ToS/host terms/privacy drafts ☐ Tax/VAT + e-invoice/e-receipt scope ☐ Processor + account structure sign-off